

March 14, 2025

Michael Kratsios
Director
Office of Science and Technology Policy
The White House
1650 Pennsylvania Avenue
Washington, D.C. 20504

Sethuraman Panchanathan
Director
National Science Foundation
2415 Eisenhower Avenue
Alexandria, VA 22314

RE: Artificial Intelligence Action Plan Request for Information

Submitted via email to: ostp-ai-rfi@nitrd.gov

Dear Directors Kratsios and Panchanathan:

AHIP is the national association that represents health insurance plans that provide coverage, services, and solutions for over 205 million Americans through public programs such as Medicare and Medicaid, employer-sponsored insurance, and the individual insurance market. AHIP appreciates the opportunity to provide comments to the Office of Science and Technology Policy (OSTP) and the National Science Foundation (NSF) on the Request for Information (RFI) on the Development of an Artificial Intelligence (AI) Action Plan. We agree fully that, with the right government policies, the United States can solidify its position as the global leader in AI and secure a brighter future for all Americans.

As Americans increasingly interact with AI in many facets of life, including across the health care system, it is important to create balanced policies that help realize the potential of AI and promote innovation, while also promoting safety and building trust among patients and stakeholders. The Administration, including through the Department of Health and Human Services (HHS), can play an important role in advancing the use of AI in the health care system by improving coordination and consistency across federal agencies, investing in AI standards development and education, and continuing to collaborate with stakeholders by participating in, and leveraging recommendations from, public-private partnerships.

Below, we provide a snapshot of the current state of health plan use of AI and provide input on high-priority policy actions and considerations for AI in health care.

Health Plan Use of AI

Use of AI in health care presents growing **opportunities for health plans to help consumers employees, providers, and other partners in improving health outcomes and the health care experience, as well as in gaining internal operational efficiencies and reducing costs.**

Examples of where AI is being used to bring value to the health care continuum include:

- **Consumers:**
 - Offering chatbots for simple member questions.
 - Facilitating quick and accurate answers for members' complex health benefits questions by customer service representatives.
 - Providing health plan apps that include pricing estimates, among other features.
 - Supporting consumer appeals processing by extracting information from faxed appeals and instantly generating a fully formed digital case file, for human review.
- **Clinical:**
 - Cleaning, integrating, normalizing, and analyzing vast amounts of data faster and more efficiently than traditional statistical methods.
 - Supporting provider partners by identifying gaps in care and potential safety issues.
 - Improving predictive analytics of patient risks to enable proactive disease and care management in partnership with providers.
 - Researching disease pathways, treatment options, and likely outcomes.
 - Supporting customized patient care plans, early interventions, and customized treatment.
- **Administrative:**
 - Near real-time **approvals** of prior authorizations based on appropriate documentation and member clinical history. while potential denials are always subject to human review.
 - Contributing to efficient claims processing and reductions in administrative costs, including flagging claims processing issues to reduce errors and support claims operators.
 - Promoting payment integrity by helping to identify patterns of payment abnormalities, enabling health plans to engage productively with their provider partners to reduce waste and prevent fraud.

Policy Recommendations

AHIP urges consideration of the following guiding principles to support clarity, coordination, and consistency in the federal government's approach to health care AI.

- **Take a Federal Approach:** A consistent national approach to AI oversight would ensure protection of patients while minimizing additional administrative burdens and costs.

- **Define “AI”:** Legislation should define AI and other terms consistent with the National Institute of Standards & Technology’s (NIST) AI Framework to build a national shared language.
- **Rely on Existing Laws:** New legislation should not duplicate existing laws and instead should only fill gaps in existing health data and consumer protection laws and regulations.
- **Provide High-Level Oversight:** Guardrails that permit flexibility should be established, and technologies or standards that may become outmoded should not be named in law.
- **Promote Risk-Based Approaches:** Policies should point to risk-based standards and confine any third-party evaluation requirements or government audits to “high-risk” uses.
- **Protect Intellectual Property:** Policies should require developers to provide sufficient transparency for deployers and explainability for consumers and should not put American companies at a competitive disadvantage by requiring disclosure of proprietary information.
- **Engage in Public-Private Partnerships:** The government should look to learnings from the private sector and collaborate with stakeholders to advance AI and inform policy.
- **Advance Standards:** Laws and regulations should defer to industry standards where they exist and fund efforts to address ongoing gaps as technology evolves.
- **Guard Privacy:** Health plans are already subject to robust privacy regulations. While a national privacy law is needed to extend patient protections to all entities that hold health care data, establishing a new private right of action would chill innovation and raise costs.

Additionally, we encourage efforts to **partner with states to promote guardrails that can serve as guiding principles and foster uniformity** among the federal government and state regulators. These efforts should include all relevant stakeholders, including consumers, to ensure comprehensive input is captured and AI developers, deployers, and end-users have the opportunity to contribute to the development of any new policies are principles.

Infrastructure to Support AI Innovation

Standards and Frameworks

Stakeholders in the private sector have been collaborating for several years to develop governance, ethical, and practice standards for organizations developing and deploying AI to protect consumers while fostering AI. AHIP has joined business and technology leaders as well as consumer advocates to advance principles, best practices, and standards. For example, AHIP has worked with the Consumer Technology Association on developing standards of trustworthiness and recommendations for bias management and continues to work with them to identify areas in which new standards are needed.¹²

¹<https://shop.cta.tech/collections/standards/products/the-use-of-artificial-intelligence-in-healthcare-trustworthiness-cta-2090>

² <https://shop.cta.tech/a/downloads/-/b5481e81fe7f99aa/9d1895627bdd6e27>

AHIP strongly encourages use of these and other existing national frameworks and standards in developing any new federal policy. This would help avoid duplication and promote a streamlined oversight structure to support continued innovation. For example, the NIST AI Risk Management Framework, developed with robust input from stakeholders, including AHIP, provides a foundation for understanding and applying methods for “tiering” of risks associated with AI.³ Further, as the Administration seeks to develop and promote the innovation potential that AI offers, it is important that federal law preempt state laws. Many states are releasing new provisions and requirements that could stifle the development of AI and hamper efforts to standardize technologies. Alignment on common principles and uniform guardrails across Congress and the Administration is critical for AI to be used to its full potential. **The NIST AI Framework should inform core components of the Action Plan, such as definitions, to provide consistency across federal AI initiatives.**

Addressing AI Risk

Governance is key to promoting trustworthy, ethical AI. **Health plans have established governance models and are continually assessing potential risks** for the use of AI in health care, including those related to safety, ethics, privacy, and security. At this point in the maturity model, health plans aim to identify and prioritize high-value and low-risk use cases for development and deployment. However, as plans build and deploy more sophisticated AI solutions over time, the work today to establish a responsible and ethical foundation for use will be critical for organizations to navigate the greater risk to realize the greater reward.

Any policies that address AI oversight should apply a risk-based approach. Algorithms that speed processing of claims and have been in place for decades are far lower risk than, for example, solutions that recommend potential treatment pathways to be shared with clinicians. Flexibility to right-size business practices and mitigation techniques based on risk is necessary to realize the potential of AI, while avoiding overly restrictive, infeasible, or misaligned policies that risk stifling innovation. Aligning with the NIST AI RMF categories and ensuring adequate human oversight for use cases that result in critical decisions for members and patients can further support risk mitigation. Further, AI coupled with interoperability can advance the health system’s ability to ensure better care for patients and administrative support for providers.

Consistent with a risk-based approach, we do not support requirements to broadly subject underlying AI technology to mandatory outside review or audit. Many health plans are proactively employing their own risk-based approaches and optimizing existing data governance structures for internal applications of AI. Health plans are also proactively testing and performing assessments on their AI solutions as part of a multifaceted risk-based approach to ensure AI systems perform as designed. **The federal government should focus on monitoring outcomes and not micromanage business practices through required third-party evaluation, audits, or disclosure of proprietary information.** If the federal government chooses to require outside testing, it should focus only on developers who sell access to large-

³ <https://www.nist.gov/itl/ai-risk-management-framework>

scale, foundation or general-purpose AI, or providers who internally develop high-risk clinical applications that generate decisions that could lead to adverse direct patient impact. It would be tremendously costly to seek outside review of all AI solutions and duplicative of plans' own internal work

Trustworthy Development & Responsible Use

Successful use of AI to enhance high-quality, affordable care will depend on responsible approaches to both AI development and AI deployment. In the current environment, there are **no established standards for delineating roles and responsibilities across the AI environment**, including between AI “developers” and “deployers,” if an adverse outcome occurs from the use of AI.

Currently, there is also a **lack of broadly applicable, established requirements or standards for AI vendors to transparently disclose key elements of tools** that would enable deployers to proactively assess the potential risk of errors, safety hazards, or discrimination, including to support evaluation efforts during the initial procurement phase of adopting new AI technology. Of particular concern are the GenAI models that, for example, develop new content, images, video, and audio. These GenAI models are trained on massive amounts of data and generally offer little transparency into the datasets used to train the models and other key components of the model's design. **While we recognize the need to protect intellectual property, AI developers should be required to share relevant details with purchasers** to inform efforts to identify and manage risk while optimizing safety and effectiveness. One approach would be to focus on “use disclosures” that are relevant and useful to deployer organizations in mitigating meaningful/tangible risks but at the same time prevent additional disclosure or monetization.

Transparency is a key enabler of trust and is a critical component of successful deployment and use of AI. Patient, consumer, and caregiver education is critical to helping individuals understand better what AI is and how it might be used. The core principles of AI transparency and explainability go together - **transparency with explainability will provide consumers and other end-users with useful, actionable information**. For example, developers of high-risk AI tools can utilize plain language examples of how the AI tool was designed and how it forms the basis of its decisions. As appropriate, AI developers and deployers can also provide information on the data used to train the AI tool to contribute to transparency efforts. In promoting transparency, consideration should be given to not overwhelming consumers with a high volume of disclosures. Broad disclosure requirements could, in practice, undermine trust and, in turn, reduce consumers' willingness to interact with, and experience the benefits of, AI and other emerging technologies.

Advancing Public-Private Efforts

AHIP believes public-private partnerships and collaboration can play an important role in facilitating data-driven efforts to advance AI. **The Action Plan should promote ongoing opportunities for public-private evidence generation and dissemination on best practices** to

support successful AI development and use. This could include **partnering with stakeholders to better understand potential applications, use cases, and risks** associated with AI. These findings should be used to guide the development of best practices, guidelines, and standards and prioritize resource allocation to ensure investments are high-value for the health care sector.

Conclusion

Thank you for your consideration of our input. AHIP appreciates your efforts to engage stakeholders as you identify AI priorities and actions. We look forward to working with you to advance AI, including opportunities to support innovation in health care. If you have questions, please contact me at

Sincerely,

Danielle A. Lloyd
Senior Vice President, Private Market Innovations & Quality Initiatives

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